

DVORAK v HOPE PUBLICATIONS, LLC.

24CV47332

DEFENDANT'S SPECIAL MOTION TO STRIKE

On April 22, 2024, Michael Dvorak ("Plaintiff") filed a complaint against Hope Publications LLC, dba Calaveras Enterprise ("Defendant") alleging causes of action for: 1) defamation, 2) libel, 3) false light, 4) defamation "per se", 5) defamation "per quod", 6) intentional infliction of emotional distress, 7) negligent infliction of emotional distress, and 8) damages.

Now before the Court is Defendant's special motion to strike pursuant to Code Civ. Procedure section 425.16.

Defendant's Request for Judicial Notice is GRANTED in full.

I. Background

Plaintiff is a member of the Board of Directors of the Calaveras County Resource Conservation District ("Calaveras RCD"). (RJN ¶ 12, Ex. 3.) He was appointed to the seven-member board in January 2022 by the County Board of Supervisors. (*Id.*, Ex. 4.)

Defendant is a publishing company that operates a locally owned newspaper called the Calaveras Enterprise ("Newspaper"). (Complaint ¶¶ 12-13.) The Newspaper is printed once a week but is also available daily online. (*Id.* ¶ 14.) Plaintiff alleges that in the October 11, 2023 edition, the Newspaper published an "erroneous felony booking log", as follows:

Michael Dvorak, 46, at 11:42 a.m. on the 10200 block of Pool Station Road in San Andreas and booked on Vandalism deface property a felony charge. (Complaint ¶¶ 17, 18, Ex. A.)

Plaintiff alleges that after a friend notified him of this report in the newspaper, he became mortified and suffered emotional distress. Plaintiff further alleges that on or about November 3, 2023, Plaintiff emailed the Defendant to take down the erroneous booking log post from their online website (Complaint, Ex B.) but Defendant failed to respond.

Plaintiff alleges that the Defendant uses the local sheriff / county office "Media Bulletin" to publish local arrest / booking logs and that in this instance, Defendant filed to verify

the County's information. After some apparent back and forth, on or about January 31, 2024, Plaintiff received a response from Sheriff DiBasilio and Deputy County Counsel Kara Frank, stating:

"The Sheriff's Office cannot send a booking sheet because, as you also stated, you were not booked so there is no booking sheet." (Complaint ¶ 29, Ex. C.)

On or about February 5, 2024, Defendant took down the published news about Plaintiff's felony booking log.

II. Legal Standard

"The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393.) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Id.* at 384.)

Anti-SLAPP motions are evaluated through a two-step process. Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. If the defendant carries its burden, the plaintiff must then demonstrate its claims have at least minimal merit. (Code Civ. Proc., § 425.16; *Park v. Bd. of Trustees of California State Univ.* (2017) 2 Cal. 5th 1057, 1061.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP, subject to being stricken under the statute." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89.)

The party opposing the special motion to strike must proffer a prima facie showing of facts supporting a judgment in his favor. (*Navellier v. Sletten*, (2002) 29 Cal.4th 82, 89.) In making its determination, "the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. [Citation.] In making this assessment it is the court's responsibility to accept as true the evidence favorable to the plaintiff. [Citation.]" (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.)

The plaintiff must also overcome substantive defenses to demonstrate a probability of prevailing. (*RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co., Inc.* (2020) 56 Cal.App.5th 413, 434; *Flatley v. Mauro* (2006) 39 Cal.4th 299, 323 [no probability of prevailing where claims are barred by the litigation privilege under Civil Code section 47.])

III. Discussion

A. Defendant has met its initial burden.

Defendant first bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Here, it has met that burden because the publication of the booking log was a statement made “in a public forum in connection with an issue of public interest.” (Code Civ. Proc. § 425.16(e)(3); *Sonoma Media Invs. v. Super. Ct.*, (2019), 34 Cal. App. 5th 24, 33-34 (newspapers and their websites are “public forums” under the statute). Moreover, the newspaper’s reporting in the Booking Log about alleged criminal activity clearly relates to “an issue of public interest.” (See, e.g., *Kapellas v. Kofman*, (1969), 1 Cal. 3d 20, 38: “Newspapers have traditionally reported arrests or other incidents involving suspected criminal activity, and courts have universally concluded that such events are newsworthy matters of which the public has the right to be informed.”).

B. Prima Facie Case

Because Newspaper has met its initial burden, the burden now moves to the Plaintiff to demonstrate that the allegations of the Complaint are both legally sufficient and supported by a sufficient prima facie showing of facts supporting a judgment in their favor. (*Chavez v. Mendoza* (2001) 94 Cal.App.4th 1083, 1087.) The party opposing the special motion to strike must proffer a prima facie showing of facts supporting a judgment in his favor. (*Navellier v. Sletten*, (2002) 29 Cal.4th 82, 89.)

1. Defamation/Libel/False Light³/Defamation Per Se/Defamation Per Quod

To carry his burden on the various defamation and libel claims, Plaintiff must demonstrate that he has pleaded, and has admissible evidence demonstrating, that the Booking Log is materially false, defamatory, and unprivileged and that its publication entitles him to damages. (See *Med. Marijuana v. ProjectCBD.com*, (2020) 46 Cal. App. 5th 869, 884 (2020). Because Plaintiff is a public figure, he must also demonstrate that the Defendant acted with “actual malice – that is, with knowledge that it was false or with reckless disregard of whether it was false or not.” (*Reader's Digest Assn. v. Superior Court*, (1984) 37 Cal.3d 244, 250, citing *New York Times v. Sullivan* (1964), 376 U.S. 254, 279-80.)

Defendant preemptively argues that Plaintiff cannot carry his burden because the allegations are based on information obtained from the police Booking Log and are therefore absolutely privileged. Civil Code section 47(d)(1) makes privileged a “fair and true report in, or a communication to, a public journal, of [a] public official proceeding,

³ False light and defamation are “essentially equivalent” causes of action. (*Fellows v. National Enquirer, Inc.*, (1986), 42 Cal.3d 234, 248 fn. 12.)

or...anything said in the course thereof.” The crime reports of a police department are qualifiedly privileged under the Civil Code. (*Hayward v. Watsonville Register-Pajaronian Sun* (1968) 265 Cal.App.2d 255, 260.)

The act of accurately reporting what was contained in a police investigation record or Booking Log is privileged. Here, Defendant accurately reported what was in the police records, specifically, information that Calaveras County Sheriff’s Office (“CCSO”) posted to Citizen RIMS.⁴ (Declaration of Corissa Davidson ¶¶ 9-12, 15.) Davidson used no other source of information for the Booking Log. (*Id.* ¶ 12, 15.) She prepared it by consulting the CCSO-published entries on the Arrests page of Citizen Rims as of October 11, 2023, and reporting it in the Booking Log. (*Id.* ¶¶ 9-15.) The Booking Log constitutes a fair and true report of the CCSO’s communications concerning a judicial and/or “public official proceeding.” (Cal. Civ. Code § 47(d)(1).)⁵ Notably, Plaintiff does not dispute that CCSO, on October 5, 2024, reported that it had arrested him on a felony vandalism charge.

California “ ‘permits *no cause of action* based upon the defamatory nature of a communication *which is itself privileged under the defamation laws.*’ ” (*Brody v. Montalbano* (1987) 87 Cal.App.3d 725, 738-39 [citation omitted].) Accordingly, as the information Defendant published in the Newspaper was privileged as an accurate report of CCSO’s communications concerning a public official proceeding, Plaintiff may not maintain any causes of action based in defamation law.

2. Remaining Causes of Action

Plaintiff also maintains causes of action for negligent and intentional infliction of emotional distress. Plaintiff may not maintain these causes of action either. The U.S. Supreme Court has defined a “zone of constitutional protection within which one could public concerning a public figure without fear of liability.” (*Reader’s Digest Assn. v. Superior Court*, (1984), 37 Cal.3d 244, 265, citing *New York Times Co. v. Sullivan*, 376 U.S. 254, 269.) Further, that “constitutional protection does not depend on the label given the stated cause of action.” (*Ibid.*) Accordingly, Plaintiff’s remaining causes of action also fail because “liability cannot be imposed on any theory for what has been determined to be a constitutionally protected publication.” (*Id.* at 265-266.)

⁴ Citizen RIMS provides visitors access to several categories of information, including information about arrests (under the site’s “Arrests” tab) and a “media bulletin” in which the CCSO disclosed information about recent calls for service (“Bulletin” tab). (Davidson Decl. ¶ 9.)

⁵ Plaintiff argues that the website the Defendant used was an unofficial source but provides no evidence in support of this assertion.

III. Conclusion

For the foregoing reasons, Defendant's motion to strike is **GRANTED**. Plaintiff's Complaint is therefore stricken in its entirety and Judgment entered on behalf of Defendant. As the prevailing party, any claim by Defendant for costs and/or attorney's fees would be determined by subsequent motion(s). The Clerk shall provide notice of these Rulings to the parties forthwith. Defendant to submit a formal Order and Judgment pursuant to Rule of Court 3.1312 in conformity with this Ruling.